

**Court No. - 3**

**Case :-** WRIT - C No. - 17587 of 2023

**Petitioner :-** Apex Dream Homes Pvt. Ltd.

**Respondent :-** Managing Director Pashchimanchal Vidyut Vitran Nigam Ltd. And 2 Others

**Counsel for Petitioner :-** Vaibhav Kaushik

**Counsel for Respondent :-** Abhishek Srivastava, Kartikeya Saran

**Hon'ble Surya Prakash Kesarwani, J.**

**Hon'ble Anish Kumar Gupta, J.**

1. On oral request of Sri Anoop Trivedi, learned Senior Advocate assisted by Sri Vaibhav Kaushik, learned counsel for the petitioner, State of U.P. through "*Additional Chief Secretary (Energy)*", Government of U.P., Lucknow, is allowed to be impleaded as respondent no. 4. Necessary correction in the array of parties be carried out during the course of the day.

2. Notice on behalf of respondent no. 4 has been accepted by Sri Rajiv Gupta, learned Additional Chief Standing Counsel, in Court.

3. The petitioner is the builder which built 618 flats which have been sold but the sale deeds are in process of execution and although a resident society, namely "*Apex Athena Welfare Society*" (registered), has been constituted but the interest of the residents are being persuaded by the petitioner herein for the reason that the maintenance etc., has not yet been handed over to the society by the builder.

4. Grievance of the residents of the society is that more than 51 percent of the residents /flat-owners of the society wants single-point connection but the respondents are arbitrarily and illegally attempting to replace the single-point connection into a multi-point connection. The residents has raised their grievances which presently is being persuaded by the petitioner.

5. In these circumstances the petitioner had earlier filed *Writ C No. 13354 of 2023 (M/S Apex Dream Homes Private Limited)* which was disposed of by order dated 21.04.2023 with a direction to the Electricity Consumer Grievance Redressal Forum, Meerut, to decide the application of the petitioner for interim relief in Complaint Case No. 13 of 2023 within three weeks. According to the petitioner, the Quorum of the aforesaid Forum is not complete and as such the Forum is non-functional which compelled the petitioner to file the present writ petition seeking the following relief:

*"A. Issue a writ, order or direction in the nature of mandamus, against the respondents, refraining them from commencing or installing or make any*

*further changes in electricity infrastructure in connection with implementation of multi-point meter installation in the petitioner building premises as neither the Electricity Consumers Grievance Redressal Forum, Meerut quorum is complete for proper adjudication of interim prayer filed by petitioner nor the respondent no. 1 to 3 has ever accepted the petitioner's 51% consent as per UP Electricity Regulatory Commission's Order dated 08.05.2020 as well as the Electricity Supply Code, 2005, wherein the consent of residents shall be obtained for the above activity to stand remain on single-point connection or to migrate to multipoint connection as prescribed.*

*B. Issue a writ, order or direction in the nature of Mandamus, Commanding the respondents to refrain from initiating the process of the multi-connection prior to mandatory Electricity Infrastructural Audit within the campus of the Petitioner Society through a licensee agency or any other authorized third-party agency having professional competency.*

*C. Issue a writ, order or direction in the nature of Mandamus, Commanding the respondents to first decide the representation dated 28.2.2023 and email dated 14.3.2023 within the stipulated period before initiating any process of multi-point connection.*

*D. In addition to or in substitution above, to grant such other and further relief in favour of the petitioner society, which this Hon'ble Court may deem just and proper in the interest of justice.*

*E. To award the Cost."*

**6.** Sri Abhishek Srivastava, learned counsel for respondent no. 2, has placed before us instructions of the respondent no. 2 dated 22.05.2023 and perusal of paragraph no. 5 of the instruction leaves no manner of doubt that despite best persuasion of the respondent no. 2, only 222 flat owners/residents have agreed for multi-point connection as against the total number of 618 residents/flat-owners. Thus, it is evident on record that the majority of the flats owners do not want multi-point connection, rather they want a single-point connection.

**7.** There is no provision which has been brought to our notice that empowers the respondent no. 2 to compel a society or residents to replace a single-point connection by a multi-connection.

**8.** Learned counsel for respondent no. 2 submits that in the event 51 percent or more of the flat owners want multi-point connection then multi-point connection shall be installed replacing the single-point connection.

**9.** We prima facie find that on facts of the present case, the submission of learned counsel for respondent no. 2 is completely misconceived inasmuch as in the present set of facts more than 51 percent of the residents/flat-owners want single-point connection.

**10.** In view of the aforesaid, let notice be issued to respondent no.3 returnable at any early date.

**11.** Steps be taken within a week by ordinary process as well as by registered post.

**12.** All the respondents shall file counter affidavit within four weeks.

**13.** Petitioner will have two weeks thereafter to file rejoinder affidavit.

**14.** List/put up in the **additional cause list** in the week commencing **17.07.2023** before the appropriate Bench.

**15.** Considering the facts and circumstances of the case, as an interim measure it is provided that the respondents shall not compel installation of multi-point connection and instead the single-point connection shall be continued.

**16.** In the event, the respondents have taken any action for multiple point connection then they shall immediately restore the single point connection.

**Order Date :- 23.5.2023**  
Shubham Arya

**Chief Justice's Court**

**Case :-** WRIT - C No. - 17587 of 2023

**Petitioner :-** Apex Dream Homes Pvt. Ltd.

**Respondent :-** Managing Director Pashchimanchal Vidyut Vitran  
Nigam Ltd. And 2 Others

**Counsel for Petitioner :-** Vaibhav Kaushik

**Counsel for Respondent :-** Abhishek Srivastava, Abhijeet  
Mukherji, Kartikeya Saran

**Hon'ble Pritinker Diwaker, Chief Justice**

**Hon'ble Ashutosh Srivastava, J.**

As prayed, list this case in the week commencing 17.7.2023.

Interim order, granted earlier, shall continue till the next date of listing.

**Order Date :-** 5.7.2023

Ravi Prakash

(Ashutosh Srivastava, J.)

(Pritinker Diwaker, CJ.)

**Chief Justice's Court**

**Case :-** WRIT - C No. - 17587 of 2023

**Petitioner :-** Apex Dream Homes Pvt. Ltd.

**Respondent :-** Managing Director Pashchimanchal Vidyut Vitran Nigam Ltd.  
And 2 Others

**Counsel for Petitioner :-** Vaibhav Kaushik, Vibhu Rai

**Counsel for Respondent :-** Abhishek Srivastava, Abhijeet  
Mukherji, Kartikeya Saran

**Hon'ble Pritinker Diwaker, Chief Justice**

**Hon'ble Ashutosh Srivastava, J.**

List the matter in the week commencing 4.12.2023.

Interim order, granted earlier in this case as well as in the connected cases, to continue till the next date of listing.

**Order Date :-** 9.10.2023

RK

(Ashutosh Srivastava, J)      (Pritinker Diwaker, CJ)

**Court No. - 3**

**Case :-** WRIT - C No. - 17587 of 2023

**Petitioner :-** Apex Dream Homes Pvt. Ltd.

**Respondent :-** Managing Director Pashchimanchal Vidyut Vitran  
Nigam Ltd. And 2 Others

**Counsel for Petitioner :-** Vaibhav Kaushik, Vibhu Rai

**Counsel for Respondent :-** Abhijeet Mukherji, Abhishek  
Srivastava, Ajay Singh, Kartikeya Saran

**Hon'ble Anjani Kumar Mishra, J.**

**Hon'ble Jayant Banerji, J.**

Passed over on the illness slip of Shri Vaibhav Kaushik, counsel  
for the petitioner.

**Order Date :-** 1.8.2024

SK

**Court No. - 3**

**Case :-** WRIT - C No. - 17587 of 2023

**Petitioner :-** Apex Dream Homes Pvt. Ltd.

**Respondent :-** Managing Director Pashchimanchal Vidyut Vitran Nigam Ltd. And 2 Others

**Counsel for Petitioner :-** Vaibhav Kaushik, Vibhu Rai

**Counsel for Respondent :-** Abhijeet Mukherji, Abhishek Srivastava, Ajay Singh, Kartikeya Saran

**Hon'ble Anjani Kumar Mishra, J.**

**Hon'ble Jayant Banerji, J.**

An illness has been sent by Shri Siddharth Singhal, learned counsel for the petitioner in Writ Petition No.22273 of 2021, which is a bunch matter.

The bunch is, therefore, passed over.

**Order Date :-** 18.11.2024

Mayank



**HIGH COURT OF JUDICATURE AT ALLAHABAD**

**WRIT - C No. - 17587 of 2023**

Apex Dream Homes Pvt. Ltd.

.....Petitioner(s)

Versus

Managing Director Pashchimanchal Vidyut Vitran  
Nigam Ltd. And 2 Others

.....Respondent(s)

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|---------------------------|---|---------------------------------------------------------------------------|
| Counsel for Petitioner(s) | : | Vaibhav Kaushik, Vibhu Rai                                                |
| Counsel for Respondent(s) | : | Abhijeet Mukherji, Abhishek<br>Srivastava, Ajay Singh, Kartikeya<br>Saran |

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**Court No. - 1**

**HON'BLE NEERAJ TIWARI, J.**  
**HON'BLE VIVEK KUMAR SINGH, J.**

As prayed, list this case on 10.11.2025 along with connected matters.

**(Vivek Kumar Singh,J.) (Neeraj Tiwari,J.)**

**October 27, 2025**  
Sartaj





**HIGH COURT OF JUDICATURE AT ALLAHABAD**

**WRIT - C No. - 17587 of 2023**

Apex Dream Homes Pvt. Ltd.

.....Petitioner(s)

Versus

Managing Director Pashchimanchal Vidyut Vitran  
Nigam Ltd. And 2 Others

.....Respondent(s)

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|                           |   |                                                                           |
|---------------------------|---|---------------------------------------------------------------------------|
| Counsel for Petitioner(s) | : | Vaibhav Kaushik, Vibhu Rai                                                |
| Counsel for Respondent(s) | : | Abhijeet Mukherji, Abhishek<br>Srivastava, Ajay Singh, Kartikeya<br>Saran |

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**Court No. - 4**

**HON'BLE NEERAJ TIWARI, J.  
HON'BLE GARIMA PRASHAD, J.**

As prayed, list this case on 19.2.2026 along with connected matters.

**(Garima Prashad,J.) (Neeraj Tiwari,J.)**

**January 29, 2026**  
Kuldeep



**HIGH COURT OF JUDICATURE AT ALLAHABAD**

**WRIT - C No. - 17587 of 2023**

Apex Dream Homes Pvt. Ltd.

.....Petitioner(s)

Versus

Managing Director Pashchimanchal Vidyut Vitran  
Nigam Ltd. And 2 Others

.....Respondent(s)

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|---------------------------|---|---------------------------------------------------------------------------|
| Counsel for Petitioner(s) | : | Vaibhav Kaushik, Vibhu Rai                                                |
| Counsel for Respondent(s) | : | Abhijeet Mukherji, Abhishek<br>Srivastava, Ajay Singh, Kartikeya<br>Saran |

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**Court No. - 4**

**HON'BLE NEERAJ TIWARI, J.  
HON'BLE GARIMA PRASHAD, J.**

As prayed, list this case on 10.4.2026 along with connected matters.

**(Garima Prashad,J.) (Neeraj Tiwari,J.)**

**March 20, 2026**  
Kuldeep